181. Also on February 28, 2024, Defendant offered Plaintiff a payment via text message for an unrelated matter for which no work had been performed. (Exhibit 40).

182. Plaintiff declined this payment for the unrelated matter.

183. In a June 10, 2024 email, Defendant characterized this specific refusal as a general refusal of all payment, stating: "I have tried to write you checks for work performed since. You have refused payment." (Exhibit 7).

184. On March 21, 2024, Plaintiff filed a "Notice of Intent to Introduce Business Records" in the Sutton case. (Exhibit 41).

185. On April 4, 2024, Plaintiff emailed Defendant a 26-page report detailing his analysis of the CDRs and outlining exculpatory findings. (Exhibit 42).

186. Plaintiff scheduled a meeting to debrief Defendant on the report's findings, but Defendant departed from the meeting early, and the report was never discussed.

187. After receiving no payment or discussion of payment, Plaintiff submitted an invoice to Defendant on April 30, 2024 for his approximately 50 hours of work on the Sutton case. (Exhibit 43).

188. The invoice left the hourly rate at $0.00, thereby inviting Defendant to propose a reasonable rate and fulfill his December 8, 2023 promise to "work out an hourly or flatrate for projects." (Exhibits 33, 43).

189. Defendant ignored the invoice and did not respond.

190. Defendant's non-payment for Plaintiff's work on the Sutton case contrasted with his handling of other case expenses, such as a client-paid psychosexual evaluation costing approximately $3,000 to $4,000.

191. Defendant had informed Plaintiff that the request for the cell phone record analysis came directly from the client, Mr. Sutton.

192. Defendant never billed Mr. Sutton for Plaintiff's work.

193. Plaintiff suggested to Defendant that he bill Mr. Sutton for the work.

194. Defendant ignored this suggestion.

195. Plaintiff subsequently contacted Mr. Sutton directly to ensure the client was aware of the exculpatory findings, as Defendant had failed to review the report.

196. Mr. Sutton confirmed to Plaintiff that Defendant had never mentioned billing him for the analysis work.

197. Mr. Sutton expressed his appreciation for Plaintiff's work and offered to pay Plaintiff directly.

198. Plaintiff declined Mr. Sutton's offer, stating that his business relationship was with Defendant, not the client.

IX. FLSA Claims and Settlement Attempts (April - October 2024)

199. On April 15, 2024, having received no payment for his work on the Sutton case, Plaintiff engaged in protected activity by emailing Defendant. (Exhibit 44).

200. In the email, Plaintiff stated the unpaid work "underscores the need for a clear understanding... and compensation" and again proposed "binding arbitration to settle the unpaid wages issue." (Exhibit 44).

201. On April 22, 2024, Defendant proposed a structurally coercive payment plan to resolve the dispute via email, designed to disincentivize Plaintiff from filing a bar complaint by spreading payments over a long period. The proposed structure was detailed as follows: "I was thinking [a sum certain] [with 37.5% paid] within 30 days, another [37.5% paid] by the end of September and then [the final 25%] next year in the first quarter." (Exhibit 45).

202. The plan proposed spreading payments over a 12- to 15-month period.

203. On April 24, 2024, Defendant sent an email to Plaintiff, admitting: "I did not follow the law and had no idea I was breaking it or that you felt the way you did until after you brought it to my attention." (Exhibit 2).

204. In the same email, Defendant provided a reason for his non-payment: "I assumed Mike has plenty of money and he likes doing this stuff so I don't need to pay him. It is like a hobby and he is a rich white guy." (Exhibit 2).

205. Defendant also claimed a lump-sum payment "a number much larger all at once could bankrupt me because insurance doesn't cover labor disputes just malpractice." (Exhibit 2).

206. This claim was made approximately ten months after Defendant's law firm received approximately $374,000 in fees from the Cooley settlement.

207. On April 30, 2024, Plaintiff again engaged in protected activity by emailing Defendant an invoice for his Sutton work and proposing they "agree upon a reasonable hourly rate." (Exhibit 43).

208. Defendant again took no action and ignored the invoice.

209. On May 2, 2024, the parties executed a Tolling Agreement to pause the statute of limitations on Plaintiff's claims during settlement negotiations. (Exhibit 46).

210. On May 13, 2024, Defendant sent an email to Plaintiff acknowledging the high quality of Plaintiff's skills, stating: "They don't hole a candle to what I thin you are able to do and it is starting to enter the market place." (Exhibit 47).

211. On May 31, 2024, Plaintiff sent Defendant a formal letter addressing his concerns and noting the upcoming expiration of the Tolling Agreement. (Exhibit 48).

212. On June 3, 2024, Defendant proposed resolving the dispute through an economically irrational "high-low" binding arbitration structure

and, on June 10, 2024, followed up with a formal offer: "I will make two different offers. We can do the binding arbitration with a high low or you can accept the [sum certain] in the three installments [37.5%] within 30 days of acceptance, [37.5%] by October 31, 2024, and [the final 25%] by the end of March of 2025." (Exhibit 7).

213. The proposed "low" amount was below the savings Defendant realized by using Plaintiff's uncompensated labor.

214. The proposed "high" amount was only marginally more than a separate cash settlement amount Defendant was offering.

215. In December 2023, Defendant had proposed a "refund" of prior legal fees as a way to resolve the dispute. (Exhibit 33).

216. After Plaintiff informed Defendant he intended to file a petition with the State Bar's fee arbitration program to recover this promised refund, Plaintiff filed the petition.

217. On September 18, 2024, after Plaintiff filed the fee arbitration petition, Defendant emailed Plaintiff a retaliatory offer with a payment plan and an explicit threat of rescission: "The offer would be [a sum certain] in total. I could pay [33.3%] next week … [33.3%] by the end of October and [the final 33.3%] by the end of March 2025… If you go forward with the fee arbitration then the offer is rescinded. If you don't accept by the end of the month or go

forward with any fee dispute or other action about my character with the bar then it is off." (Exhibit 49).

218. Plaintiff attempted to accept the monetary portion of the offer while reserving his right to proceed with the fee arbitration.

219. In response, Defendant drafted a settlement agreement that included a clause prohibiting Plaintiff from presenting additional evidence at the fee arbitration hearing. (Exhibit 50).

220. On October 1, 2024, Plaintiff warned Defendant via email that this proposed agreement structure violated Rule 9.2. (Exhibit 51).

221. On October 7, 2024, Defendant sent a revised settlement proposal that continued to include terms restricting Plaintiff's ability to pursue his claims. (Exhibit 50).

222. On October 8, 2024, after Plaintiff requested that Defendant obtain legal representation to assist with the negotiations, Defendant sent Plaintiff a series of emails. (Exhibit 52).

223. In these emails, Defendant accused Plaintiff of "regretting the offer." (Exhibit 52).

CAUSES OF ACTION

COUNT I: VIOLATION OF THE FAIR LABOR STANDARDS ACT – MINIMUM WAGE (29 U.S.C. § 206)

224. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

225. The FLSA requires employers to pay employees not less than the federal minimum wage for all hours worked. 29 U.S.C. § 206.

226. The statute of limitations for an FLSA claim is two years, or three years if the violation was willful. 29 U.S.C. § 255(a).

227. Pursuant to a Tolling Agreement executed by the parties, the limitations period was tolled for 30 days. (Exhibit 46).

228. This claim is timely filed.

229. At all relevant times, Plaintiff was Defendant's "employee" within the meaning of the FLSA.

230. The economic realities of the relationship establish that Plaintiff was an employee of Defendant.

231. Defendant controlled the means and manner of Plaintiff's work.

232. Plaintiff's work was an integral part of Defendant's business.

233. At all relevant times, Defendant was subject to the FLSA under either enterprise coverage or individual coverage.

234. Plaintiff performed compensable work for Defendant from approximately March 9, 2022, through April 2024.

235. Defendant failed to pay Plaintiff any wages for the hours he worked.

236. Defendant's failure to pay Plaintiff the required minimum wage was willful.

237. Defendant, an attorney, knew or showed reckless disregard for the matter of whether his conduct was prohibited by the FLSA.

238. Defendant's willfulness is established by his own admissions, including that he was "guilty of taking advantage of you," was "just giving you stuff to add value to my cases for free," and that he "did not follow the law." (Exhibits 2, 35).

239. Defendant acted willfully by leveraging confidential knowledge from a prior attorney-client relationship to assume Plaintiff did not need to be paid—an assumption Defendant later admitted in writing was the basis for his non-payment. (¶¶ 70-72; Exhibit 2).

240. Defendant's willfulness is further demonstrated by his pattern of making explicit promises of payment to induce Plaintiff to perform work and then breaking those promises. (Exhibits 3, 37).

241. Defendant's knowledge of his wrongdoing is evidenced by his providing shifting and contradictory narratives regarding the employment terms, alternately claiming it was an "unpaid internship" or that Plaintiff had "refused payment," directly contradicting his initial written offer. (Exhibits 3, 6, 7).

242. Defendant demonstrated further willfulness by instructing Plaintiff not to report his hours immediately after a third-party attorney suggested Plaintiff should be paid on an hourly basis. (Exhibit 27).

243. Further evidence of willfulness includes Defendant's attempt to disguise the owed compensation by proposing to structure it as a tax-advantaged "refund" of prior legal fees rather than as wages. (Exhibits 33, 54).

244. Finally, Defendant's reckless disregard for his legal obligations is established by his repeated attempts to condition settlement on Plaintiff waiving his right to file disciplinary complaints, a tactic he continued even after being notified it violated professional conduct rules. (Exhibits 32, 34, 50).

245. As a direct and proximate result of Defendant's willful violation of the FLSA, Plaintiff has suffered damages in the form of unpaid minimum wages.

COUNT II: VIOLATION OF THE FAIR LABOR STANDARDS ACT – OVERTIME (29 U.S.C. § 207)

246. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

247. The FLSA requires employers to pay non-exempt employees compensation at a rate of one and one-half times their regular rate for all hours worked over 40 in a workweek. 29 U.S.C. § 207.

248. This claim is timely filed for the reasons stated in paragraphs 225-227.

249. At all relevant times, Plaintiff was a non-exempt employee under the FLSA.

250. Plaintiff's duties included non-exempt administrative tasks.

251. The Employment Offer Letter accepted by Defendant set Plaintiff's salary at $14,500 annually. (Exhibit 4).

252. The $14,500 salary was below the 2022 minimum salary threshold of $35,568 required for an employee to be classified as exempt.

253. Because Plaintiff was not paid on a salary basis meeting the FLSA's requirements, he could not qualify for an "exempt" status.

254. Upon information and belief, Plaintiff worked more than 40 hours in one or more workweeks during his employment, including but not limited to workweeks involving intensive efforts on the Cooley v. Ashita case (¶¶ 105-106) and the multi-week, time-sensitive analysis of call detail records in the State v. Sutton case (¶¶ 174-175, 184).

255. Defendant failed to pay Plaintiff any overtime premium for hours worked in excess of 40 in a workweek.

256. Defendant's failure to pay Plaintiff required overtime wages was willful.

257. Defendant, an attorney, knew or showed reckless disregard for the matter of whether his failure to pay overtime was prohibited by the FLSA.

258. Defendant knew that Plaintiff worked substantial hours.

259. Defendant knew or recklessly disregarded that Plaintiff was a non-exempt employee, as the salary specified in the Offer Letter he accepted was facially insufficient to meet the FLSA's salary basis test for exemption. (Exhibit 4).

260. Defendant's willfulness is further established by the facts alleged in paragraphs 237 through 243 of this Complaint, which are incorporated herein by reference.

261. As a direct and proximate result of Defendant's willful violation of the FLSA, Plaintiff has suffered damages in the form of unpaid overtime wages.

COUNT III: VIOLATION OF THE FAIR LABOR STANDARDS ACT – RETALIATION (29 U.S.C. § 215(a)(3))

262. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

263. The FLSA prohibits employers from discharging or in any other manner discriminating against any employee because such employee has filed any complaint or instituted or caused to be instituted any proceeding under or related to this chapter. 29 U.S.C. § 215(a)(3).

264. This claim is timely filed for the reasons stated in paragraphs 225-227.

265. Plaintiff engaged in protected activity under the FLSA by complaining about Defendant's failure to pay him lawful wages.

266. Plaintiff's protected activities include, but are not a limited to, the following:

267. On May 18, 2022, Plaintiff emailed Defendant legal salary guide information, constituting an informal complaint for market-rate wages. (Exhibit 11).

268. On August 14, 2022, Plaintiff ceased working for Defendant as a protest against the non-payment of his wages. (Exhibit 13).

269. On December 7, 2023, Plaintiff emailed Defendant formally proposing binding arbitration to resolve the dispute over nonpayment of his wages.

270. On April 15, 2024, Plaintiff again emailed Defendant proposing binding arbitration, expressly referencing his unpaid work on the Sutton case and the need for compensation. (Exhibit 44).

271. On April 30, 2024, Plaintiff submitted an invoice to Defendant for work performed on the Sutton case and proposed they agree on a reasonable hourly rate. (Exhibit 43).

272. In response to and because of Plaintiff's protected activities, Defendant took adverse employment actions against Plaintiff.

273. Defendant's adverse actions were such that they would dissuade a reasonable worker from making or supporting a charge of discrimination.

274. Defendant's adverse actions include, but are not limited to, the following:

275. After sponsoring an employment relationship that served as the sole basis for Plaintiff's court-ordered release from house arrest, Defendant retaliated against Plaintiff for quitting in protest of non-payment by immediately obstructing his ability to continue work, thereby revoking the primary benefit of the employment and effectively returning Plaintiff to a state of confinement. (Exhibit 20).

276. Within 48 hours of Plaintiff quitting in protest of non-payment, Defendant hired a paid replacement, an action he had failed to take for the preceding five months while Plaintiff worked for free. (Exhibits 13, 14).

277. Defendant refused to pay Plaintiff for his significant work on the Sutton case after explicitly promising he would be paid. (Exhibit 37).

278. Long after the events in question, Defendant fabricated and advanced a false narrative that Plaintiff had "ghosted" the firm, a pretext designed to undermine Plaintiff's credibility and his wage claims. (Exhibits 2, 7).

279. In retaliation for Plaintiff's protected activities, Defendant leveraged his position of trust as Plaintiff's former attorney to pressure Plaintiff to accept a felony plea deal in his unrelated criminal case.

280. Defendant's action was retaliatory because a felony conviction would have severely undermined Plaintiff's credibility as a witness, destroyed his future earning capacity, and reasonably dissuaded or chilled him from pursuing his wage claims against Defendant. (See supra ¶¶ 146-153).

281. Defendant repeatedly conditioned settlement offers on Plaintiff's agreement to waive his right to file disciplinary or fee dispute complaints with the State Bar of Georgia. (Exhibits 32, 50).

282. A causal connection exists between Plaintiff's protected activity and Defendant's adverse actions.

283. Causation is established by the close temporal proximity between Plaintiff's complaints and Defendant's adverse actions.

284. Causation is further established by Defendant's own statements explicitly linking settlement offers to the cessation of Plaintiff's protected activities. (Exhibit 49).

285. As a direct and proximate result of Defendant's retaliation, Plaintiff has suffered damages.

286. These damages include, but are not limited to, lost wages for the Sutton case.

287. These damages also include the loss of personal liberty resulting from Defendant's obstruction of the court-sanctioned work arrangement that was the basis for Plaintiff's release from house arrest.

288. Plaintiff also suffered significant emotional distress arising from Defendant's actions, including the stress of unwarranted confinement and the humiliation caused by Defendant's false narratives and coercive tactics.

PLEADING IN THE ALTERNATIVE

289. Plaintiff realleges the preceding paragraphs. Counts IV through IX are pleaded in the alternative to Plaintiff's FLSA claims in Counts I–III. To the extent Plaintiff is determined not to be an "employee" entitled to relief under the FLSA, he is entitled to relief under the following state law theories.

COUNT IV: BREACH OF CONTRACT

290. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

291. A valid and enforceable contract was formed between Plaintiff and Defendant for the initial employment period ("Initial Contract").

292. On or about January 20, 2022, Defendant offered to employ Plaintiff. (Exhibit 3).

293. Defendant's offer specified that the employment would be "Paid but underpaid." (Exhibit 3).

294. Plaintiff accepted Defendant's offer of employment.

295. The terms of the Initial Contract were further memorialized in an offer letter dated February 4, 2022. (Exhibit 4).

296. The offer letter specified the role of "Legal Clerk" and an annual salary of $14,500. (Exhibit 4).

297. Defendant reviewed and accepted the terms set forth in the offer letter. (Exhibit 53).

298. Consideration for the Initial Contract consisted of Plaintiff's promise to perform services and Defendant's promise to provide compensation.

299. Plaintiff fully performed his obligations under the Initial Contract by rendering services to Defendant from March 2022 through August 2022.

300. Alternatively, a separate, valid, and enforceable contract was formed between Plaintiff and Defendant for work on the Sutton case ("Sutton Contract").

301. On February 26, 2024, Defendant promised to pay Plaintiff for work on the Sutton case, stating in a text message, "pay you as well." (Exhibit 37).

302. In reliance on Defendant's promise of payment, Plaintiff performed approximately 50 hours of work on the Sutton case.

303. Plaintiff fully performed his obligations under the Sutton Contract.

304. Defendant breached both the Initial Contract and the Sutton Contract.

305. Defendant breached the contracts by failing to pay Plaintiff any of the promised compensation for his services.

306. As a direct and proximate result of Defendant's breaches, Plaintiff has suffered damages in the form of unpaid compensation.

COUNT V: QUANTUM MERUIT

307. In the alternative to Count IV (Breach of Contract), and only if no enforceable express contract is found to govern Plaintiff's services, Plaintiff is entitled to recover the reasonable value of his services under the theory of quantum meruit as follows.

308. From March 2022 through April 2024, Plaintiff performed services for Defendant.

309. These services included, but were not limited to, legal research, drafting legal documents, case management, factual investigation, and data analysis.

310. These services were valuable.

311. The value of these services is evidenced by Plaintiff's advanced degrees and professional background.

312. The value of these services is further evidenced by Defendant's own characterizations of Plaintiff's work.

313. On August 8, 2022, Defendant described Plaintiff's actions as "invaluable." (Exhibit 12).

314. On June 20, 2023, Defendant described Plaintiff as "the guru at investigating all data." (Exhibit 26).

315. On July 27, 2023, Defendant described Plaintiff as a "brilliant law clerk." (Exhibit 28).

316. Defendant accepted Plaintiff's services.

317. Defendant received a substantial benefit from Plaintiff's services.

318. Defendant benefited by having Plaintiff fill a vacant legal assistant/clerk position for over five months without cost.

319. Defendant benefited from Plaintiff's work on cases that generated significant legal fees for his firm. (Exhibit 1).

320. Defendant benefited by avoiding the expense of hiring a paid employee to perform the work done by Plaintiff.

321. Plaintiff performed these services with the reasonable expectation of being compensated for their value.

322. Defendant knew or should have known that Plaintiff expected compensation for his professional services.

323. This knowledge is evidenced by Defendant's own promises to pay Plaintiff. (Exhibits 4, 37).

324. This knowledge is further evidenced by Plaintiff's inquiries and actions related to compensation. (Exhibits 11, 43, 44).

325. In equity and good conscience, Plaintiff is entitled to recover the reasonable value of the services rendered to Defendant.

326. As a direct result of Defendant's failure to pay, Plaintiff has been damaged in an amount equal to the reasonable value of his uncompensated services.

COUNT VI: UNJUST ENRICHMENT

327. In the alternative to Count IV (Breach of Contract), and only if no enforceable express contract is found, Plaintiff asserts this claim for unjust enrichment.

328. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

329. Plaintiff conferred a substantial financial benefit upon Defendant by providing valuable professional services from March 2022 through April 2024 without receiving any compensation.

330. Defendant appreciated the benefit conferred by Plaintiff.

331. Defendant's appreciation of the benefit is evidenced by his assigning Plaintiff important work on firm cases.

332. Defendant's appreciation of the benefit is further evidenced by his express statements regarding the high quality and value of Plaintiff's work. (Exhibits 12, 26, 28).

333. Defendant accepted and retained this benefit.

334. It is inequitable for Defendant to retain this benefit without paying for its value.

335. The inequity of Defendant's retention of the benefit arises from his use of confidential knowledge of Plaintiff's finances and background to secure the services. (¶¶ 66-72).

336. The inequity of Defendant's retention of the benefit arises from his use of Plaintiff's vulnerability due to restrictive bond conditions to secure the services. (Exhibit 3).

337. The inequity of Defendant's retention of the benefit arises from Defendant's own promises to pay Plaintiff for his services. (Exhibits 4, 37).

338. The inequity of Defendant's retention of the benefit arises from Defendant's own admissions of wrongdoing.

339. On December 15, 2023, Defendant admitted in an email, "This is where I am guilty of taking advantage of you." (Exhibit 35).

340. On April 24, 2024, Defendant admitted in an email, "I did not follow the law." (Exhibit 2).

341. Defendant has been unjustly enriched at Plaintiff's expense.

342. As a direct and proximate result of Defendant's unjust enrichment, Plaintiff has suffered damages in an amount equal to the value of the benefit conferred upon Defendant.

COUNT VII: PROMISSORY ESTOPPEL

343. In the alternative to Count IV (Breach of Contract), and only if no enforceable express contract is found, Plaintiff asserts this claim for promissory estoppel.

344. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

345. Under O.C.G.A. § 13-3-44(a), a promise which the promisor should reasonably expect to induce action or forbearance on the part of the promisee and which does induce such action or forbearance is binding if injustice can be avoided only by enforcement of the promise.

346. The statute of limitations for this claim is four years. O.C.G.A. § 9-3-26.

347. Pursuant to a Tolling Agreement between the parties, the limitations period was tolled for 30 days (Exhibit 46).

348. This claim is timely.

349. Defendant made a promise of payment to Plaintiff to induce Plaintiff to work for him.

350. Specifically, on January 20, 2022, Defendant promised Plaintiff's employment would be "Paid but underpaid." (Exhibit 3).

351. Defendant made another promise of payment to Plaintiff to induce Plaintiff to perform work on the Sutton case.

352. Specifically, on February 26, 2024, Defendant promised to "pay you as well" for work on the Sutton case (Exhibit 37).

353. Defendant knew or should have reasonably expected that Plaintiff would rely on these promises of payment.

354. Plaintiff did, in fact, reasonably rely on Defendant's promises.

355. In reliance on Defendant's initial promise of payment, Plaintiff accepted the employment position.

356. In reliance on Defendant's employment offer, Plaintiff sought and obtained a modification of his bond conditions, which was predicated on his employment with Defendant.

357. In reliance on Defendant's promises of payment, Plaintiff performed substantial legal and administrative work for Defendant from March 2022 through April 2024.

358. In reliance on Defendant's promises, Plaintiff incurred personal, unreimbursed expenses for the benefit of Defendant's law firm.

359. In reliance on Defendant's promises, Plaintiff forewent other opportunities for paid employment.

360. Plaintiff's reliance on Defendant's promises was to his detriment.

361. As a result of his reliance, Plaintiff suffered damages, including the value of his uncompensated labor, unreimbursed expenses, and lost wages from other opportunities.

362. Injustice can be avoided only by enforcement of Defendant's promises.

363. Enforcement is necessary due to the significant benefit Defendant received from Plaintiff's labor.

364. Enforcement is necessary due to the significant detriment Plaintiff suffered in reliance on Defendant's promises.

365. Enforcement is necessary given Defendant's own admissions that he was "guilty of taking advantage" of Plaintiff (Exhibit 35).

366. Enforcement is necessary given Defendant's admission that he "did not follow the law" (Exhibit 2).

367. As a direct and proximate result of his detrimental reliance on Defendant's promises, Plaintiff has suffered damages.

COUNT VIII: BREACH OF FIDUCIARY DUTY

368. In the alternative to Counts IV-VII, and only if no enforceable contract is found to govern Plaintiff's services, Plaintiff asserts this claim for breach of fiduciary duty.

369. Plaintiff restates and incorporates by reference all preceding paragraphs as if fully stated herein.

370. A fiduciary or confidential relationship exists where one party is so situated as to exercise a controlling influence over the will, conduct, and interest of another or where, from a similar relationship of mutual confidence, the law requires the utmost good faith. O.C.G.A. § 23-2-58.

371. A fiduciary relationship existed between Plaintiff and Defendant arising from their prior attorney-client relationship (2015-2016).

372. During this prior relationship, Defendant gained access to Plaintiff's confidential personal, professional, and financial information.

373. This confidential information included Plaintiff's educational qualifications, professional skills, and earning history.

374. This confidential information included Defendant's unique knowledge of Plaintiff's financial circumstances, including his multi-year unemployment and his ability to sustain significant legal expenses during that time (¶¶ 67-69).

375. An attorney's fiduciary duties to a former client regarding confidential information survive the termination of the attorney-client relationship. See Georgia Rules of Professional Conduct 1.6, 1.9.

376. Defendant owed Plaintiff a continuing fiduciary duty of loyalty and utmost good faith with respect to the confidential information gained during the prior representation.

377. Defendant breached this fiduciary duty.

378. Defendant breached his duty by using confidential knowledge of Plaintiff's financial background to form a calculated belief that Plaintiff would not demand payment for his labor, an assumption Defendant later confirmed in writing. (¶¶ 70-72).

379. Defendant breached his duty by using confidential knowledge of Plaintiff's skills, work ethic, and qualifications to solicit and benefit from Plaintiff's high-value labor without compensation.

380. Defendant breached his duty by using knowledge of Plaintiff's restrictive bond conditions—knowledge gained in his capacity as a former and prospective legal counselor—to induce Plaintiff into an uncompensated employment relationship (Exhibit 3).

381. Defendant breached his duty by exploiting the residual trust and confidence from the prior attorney-client relationship to induce and maintain a subsequent, uncompensated employment relationship, thereby securing a financial benefit for himself at Plaintiff's direct financial detriment.

382. Defendant further breached his fiduciary duties by acting contrary to the interests of the person who had placed trust in him.

383. Specifically, after facilitating an employment relationship that was the basis for Plaintiff's release from house arrest, Defendant pressured Plaintiff to accept a felony plea deal.

384. A felony conviction would have destroyed Plaintiff's future earning capacity and negated the entire benefit of the court-approved employment that Defendant himself had sponsored.

385. Defendant applied this pressure despite admitting he had not reviewed the evidence in Plaintiff's criminal case (Exhibit 7).

386. Defendant's breaches were willful and demonstrated a profound lack of good faith and loyalty. This willfulness is established by the same pre-litigation pattern of conduct demonstrating his reckless disregard for his legal and ethical obligations as alleged in paragraphs 237 through 243.

387. As a direct and proximate result of Defendant's breaches of his fiduciary duties, Plaintiff has suffered damages.

388. These damages include the value of his unpaid labor, financial losses, and emotional distress.

389. Defendant's conduct showed willful misconduct, malice, fraud, wantonness, oppression, or that entire want of care which would raise the presumption of conscious indifference to consequences, thereby entitling Plaintiff to punitive damages under O.C.G.A. § 51-12-5.1.

COUNT IX: EXPENSES OF LITIGATION (O.C.G.A. § 13-6-11)

390. Plaintiff incorporates by reference all preceding paragraphs as if fully stated herein.

391. Pursuant to O.C.G.A. § 13-6-11, Plaintiff is entitled to recover the expenses of this litigation, including attorneys' fees, from Defendant.

392. This claim is timely.

393. Defendant Has Acted in Bad Faith and Caused Unnecessary Trouble: Plaintiff is entitled to recover litigation expenses pursuant to O.C.G.A. § 13-6-11 because Defendant has acted in bad faith, has been stubbornly litigious, and has caused Plaintiff unnecessary trouble and expense.

394. Defendant has acted in bad faith.

395. Defendant's bad faith is established by his conduct in the formation of the employment relationship, where he exploited confidential information from a prior attorney-client relationship to induce Plaintiff into performing uncompensated labor.

396. Defendant's bad faith is further established by his pattern of making and then breaking promises of payment.

397. Defendant's bad faith is also established by his fabricating false narratives after the dispute arose to undermine Plaintiff's claims.

398. Defendant has also been stubbornly litigious.

399. Defendant's stubborn litigiousness is established by his refusal to resolve this matter despite his own written admissions regarding the employment relationship, the value of Plaintiff's work, and his own wrongdoing, leaving no genuine factual or legal dispute as to his underlying liability and thereby forcing this litigation.

PRAYER FOR RELIEF

WHEREFORE, Plaintiff Michael E. Sullivan, Jr. respectfully prays for judgment against Defendant W. Michael Maloof, Jr. granting the following relief:

(1) All unpaid minimum wages due under the FLSA;

(2) All unpaid overtime wages due under the FLSA;

(3) Liquidated damages equal to the amount of unpaid minimum and overtime wages pursuant to 29 U.S.C. § 216(b);

(4) Compensatory damages for FLSA retaliation, including but not limited to damages for emotional distress;

(5) Damages for breach of contract, quantum meruit, unjust enrichment, promissory estoppel, and breach of fiduciary duty under state law;

(6) Punitive damages for breach of fiduciary duty, if applicable under O.C.G.A. § 51-12-5.1;

(7) Pre-judgment and post-judgment interest at the applicable legal rates;

(8) Reasonable attorneys' fees and expenses of litigation pursuant to 29 U.S.C. § 216(b);

(9) Expenses of litigation, including attorneys' fees where permitted, pursuant to O.C.G.A. § 13-6-11;

(10) Equitable relief as appropriate, including but not limited to an accounting of profits derived from Plaintiff's uncompensated labor, a constructive trust over such funds, and any necessary declaratory or injunctive relief; and

(11) Such other and further relief as this Court deems just and proper.

JURY DEMAND

Pursuant to Fed. R. Civ. P. 38(b), Plaintiff demands a trial by jury.

EXHIBIT LIST

Exhibit 1: $1.87M Settlement (Jun. 21, 2023)

Exhibit 2: Maloof Email (Apr. 24, 2024)

Exhibit 3: Maloof SMS (Jan. 20, 2022)

Exhibit 4: Sullivan Email (Feb. 4, 2022)

Exhibit 5: Maloof Email (Feb. 15, 2022)

Exhibit 6: Maloof Email (Nov. 27, 2023)

Exhibit 7: Maloof Email (Jun. 10, 2024)

Exhibit 8: Maloof Email (Mar. 9, 2022)

Exhibit 9: Sullivan Email (Mar. 10, 2022)

Exhibit 10: Lynch Email (Apr. 1, 2022)

Exhibit 11: Sullivan Email (May 18, 2022)

Exhibit 12: Maloof Letter (Aug. 8, 2022)

Exhibit 13: Sullivan Email (Aug. 14, 2022)

Exhibit 14: MyCase Email (Aug. 16, 2022)

Exhibit 15: Maloof Email (Aug. 22, 2022)

Exhibit 16: Delta Email (Sep. 16, 2022)

Exhibit 17: Delta Email (Oct. 3, 2022)

Exhibit 18: Sullivan Email (Aug. 18, 2022)

Exhibit 19: Maloof Email (Aug. 18, 2022)

Exhibit 20: Maloof SMS (Aug. 22, 2022)

Exhibit 21: Sullivan Email (Jun. 6, 2023)

Exhibit 22: Matson Email (Sep. 12, 2022)
Exhibit 23: Sullivan Email (Mar. 7, 2023)
Exhibit 24: Sullivan Email (Aug. 17, 2022)
Exhibit 25: Maloof SMS (Mar. 13, 2023, 9:46 AM)
Exhibit 26: Maloof Email (Jun. 20, 2023)
Exhibit 27: Hendrick Email (Jul. 19, 2023)
Exhibit 28: Maloof Email (Jul. 27, 2023)
Exhibit 29: Maloof Email (Nov. 16, 2023)
Exhibit 30: Sullivan Email (Nov. 19, 2023)
Exhibit 31: Sullivan Email (Dec. 5, 2023)
Exhibit 32: Maloof Email (Dec. 6, 2023)
Exhibit 33: Maloof Email (Dec. 8, 2023)
Exhibit 34: Sullivan Email (Dec. 8, 2023)
Exhibit 35: Maloof Email (Dec. 15, 2023)
Exhibit 36: Maloof Email (Dec. 18, 2023)
Exhibit 37: Maloof SMS (Feb. 26, 2024, 4:59 PM)
Exhibit 38: Odyssey (Feb. 28, 2024)
Exhibit 39: Odyssey Email, Subpoena (Mar. 21, 2024)
Exhibit 40: Maloof SMS (Feb. 28, 2024, 7:39 AM)
Exhibit 41: Odyssey Email, Notice of Intent (Mar. 21, 2024)
Exhibit 42: Sullivan Email (Apr. 4, 2024)
Exhibit 43: Sullivan Email (Apr. 30, 2024)
Exhibit 44: Sullivan Email (Apr. 15, 2024)
Exhibit 45: Maloof Email (Apr. 22, 2024)
Exhibit 46: Tolling Agreement (May 2, 2024)
Exhibit 47: Maloof Email (May 13, 2024)
Exhibit 48: Sullivan Email & Letter (May 31, 2024)
Exhibit 49: Maloof Email (Sep. 18, 2024)
Exhibit 50: Proposed Settlement Agreement (Oct. 7, 2024)
Exhibit 51: Sullivan Email (Oct. 1, 2024)

Exhibit 52: Maloof Email (Oct. 8, 2024)

Exhibit 53: Maloof Email (Feb. 4, 2022)

Exhibit 54: Recorded Call Excerpts

Respectfully submitted this 28th day of August, 2025.

Michael E. Sullivan, Jr.,
Plaintiff *pro se*

3324 Peachtree Road NE, Unit 1405
Atlanta, GA 30326
(678) 372-3000
msullivanjr@gmail.com

FONT AND POINT CERTIFICATION

The undersigned Plaintiff hereby certifies that the within and foregoing **FIRST AMENDED COMPLAINT FOR DAMAGES** was prepared using Century Schoolbook, 13-point font in accordance with LR 5.1(C).

Exhibit 1

$1.87M Settlement (Jun. 21, 2023)

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https://www.law.com/dailyreportonline/2023/06/21/how-dekalb-attorneys-leveraged-criminal-defense-connections-in-1-87m-premises-liability-settlement/

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How DeKalb Attorneys Leveraged Criminal Defense Connections in $1.87M Premises Liability Settlement

Andrew Lynch was familiar with the area from his early days as a criminal defense attorney. Co-counsel Mike Maloof described it as "a war zone."

June 21, 2023 at 05:57 PM

Premises Liability



Alex Anteau

- Plaintiff's counsel said the case was tricky because the shooting in question took place between two properties, across an intersection.
- The area had been a problem for local law enforcement for years and police eventually provided testimony on the case.
- The case settled before trial, after defense counsel withdrew.

Personal injury lawyer Andrew Lynch and criminal defense attorney Mike Maloof recently secured a $1.87 million settlement in a DeKalb County State Court premises liability case.

Maloof said the plaintiff, a mother whose son was killed during a turf war between two gang members that spanned two gas stations in Stone Mountain, Georgia, "had just about given up on trying to find an attorney" when she brought her case to him.

The case was tricky because the deceased, a bystander, was killed in the crossfire between two gas stations on opposite sides of an intersection. However, Maloof said the family left a good impression on him and he was familiar with the area through his criminal defense work.

"I thought there may or may not be something there, but given what had happened and what [the family] described, it was definitely worth looking into," Maloof said. Lynch echoed this sentiment, and after the two did some digging Maloof came to describe the area as "a war zone."

In short, Maloof's instincts were right on the money. "The further we looked into it, really truthfully the case got better and better," Maloof said. "In premises cases, there are so many different grounds that can prevent any type of recovery, and as we went further and further into the case, it became more and more apparent that the typical outs in a premises case for a defendant were less, less than less available."

"The incident reports literally read like a novel," Lynch said.

With institutional knowledge of the county and their past experiences, the duo knew exactly where to look for the materials they needed to bring their case. "The interesting thing about criminal defense is that you know where all the information is," Lynch said.

"We went down and just knocked on the front door of the Tucker precinct, and a sergeant came out and he was a guy that we've known from the criminal court years before and, and he pretty quickly put us in touch with the officers who had first-hand information of telling the gas station that they had issues with gangs," Lynch said. "[They] eventually sat for depositions in the case and really helped us build the actual knowledge of the defendants' criminal activity at their premises."

John Blair of Levy, Sibley, Foreman & Speir represented the defense. According to his motion to withdraw, continued representation of the client would have violated the Georgia Rules of Professional Responsibility. Blair said, "The case settled—there isn't much more to it really."

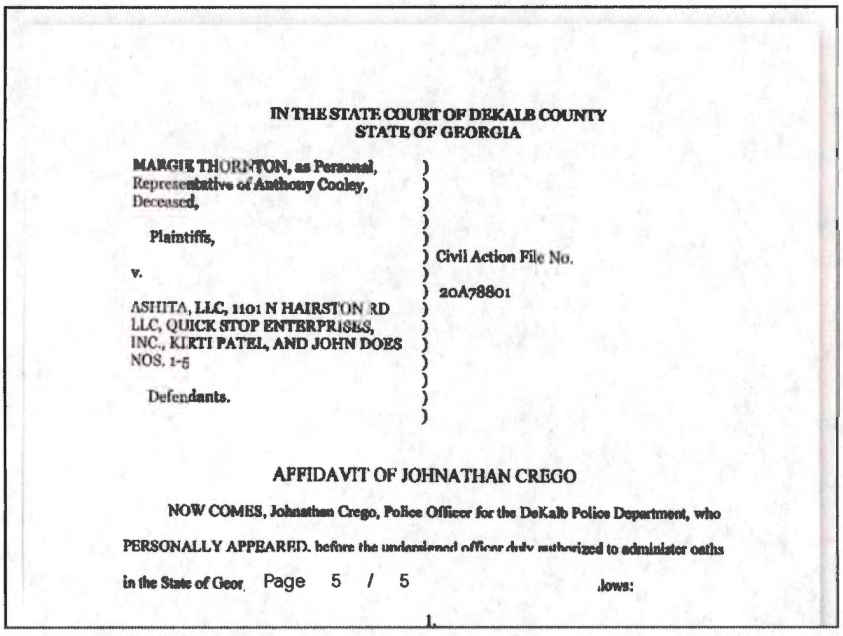
The plaintiffs say they are happy with the outcome.

"[Our client is] a wonderful lady that never really had much of an interest in financial gain. Frankly, she wanted to settle the case without having to go to court but also was willing to let us go to trial," Lynch said. "She wanted the gas station closed and the gas station is now underground."

"[The family] was so delightful to [work] with," Maloof said. "If every client was like them, this would be the greatest job on the face of the earth."

The case is *Thornton v. Quick Stop Enterprises*, No. 20A78801, in the state court of DeKalb County.

Read an affidavit from the case below.



IN THE STATE COURT OF DEKALB COUNTY
STATE OF GEORGIA

MARGIE THORNTON, as Personal, Representative of Anthony Cooley, Deceased,

Plaintiffs,

v.

ASHITA, LLC, 1101 N HAIRSTON RD LLC, QUICK STOP ENTERPRISES, INC., KIRTI PATEL, AND JOHN DOES NOS. 1-5

Defendants.

Civil Action File No.

20A78801

AFFIDAVIT OF JOHNATHAN CREGO

NOW COMES, Johnathan Crego, Police Officer for the DeKalb Police Department, who PERSONALLY APPEARED, before the undersigned officer duly authorized to administer oaths in the State of Geor Page 5 / 5 lows:

1.

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Exhibit 2

Maloof Email (Apr. 24, 2024)

Gmail Michael Sullivan <msullivanjrlaw@gmail.com>

Re: Lunch This Week to Discuss further LLC and how to get things started

1 message

Mike Maloof <malooflawfirm@gmail.com> Wed, Apr 24, 2024 at 12:54 PM
To: Michael Sullivan <msullivanjrlaw@gmail.com>

If we collar it and make it confidential I am fine. My offer really was [redacted] in a structured type settlement. I know I can pay [redacted] in 30 days and [redacted] later this year and [redacted] before the middle of next year absent some type of financial collapse. My rational was as follows:

1) I know I can do it financially a number much larger all at once could bankrupt me because insurance doesn't cover labor disputes just malpractice;
2) 30 is what I would have paid a law clerk that worked part time for a year and 3 months (24 hours a week at 20 an hour) you started around the end February or beginning of March of 2022 worked for a year on and off and returned shortly after the trial that never happened for about 6 months. You vanished a few times in there for a bit so I calculated 15 months at 2K a month and we get to 30K and I figured 10K more would be owed for the additional work you did this year and costs you incurred helping me and my clients during that time;
3) I think given the change in circumstances from when you started and after your charges were dismissed made things different, but I did not follow the law and had no idea I was breaking it or that you felt the way you did until after you brought it to my attention. I wanted to pay you in the beginning and you refused. I did not offer again if my memory serves me correctly. Once your case was over I just took it for granted. I wish we had just paid at the beginning that way this would never have happened.
4) I want everything to be amicable. I think there is a lot of stuff I don't want to come out for both of us even at an arbitration. I am ashamed that I did not recognize you felt the way you did and it was not my intention to take advantage of you and abuse your help.
5) I did the same thing Ford did. I assumed Mike has plenty of money and he likes doing this stuff so I don't need to pay him. It is like a hobby and he is a rich white guy. I didn't think exactly like that when I was doing it but reflecting back on it I did see it that way (Mike is wealthy I am not and he likes having something to do). I think that was more unconscious than conscious. I don't like screwing people over, and I just never recalibrated or thought about what your thoughts were regarding the money. I can be selfish sometimes and I should have asked.
6) Anything more than [redacted] structured the way I laid out would affect other people in my life. I don't want them to pay for my mistake. So I thought this was fair under all circumstances.

Sincerely,

Mike Maloof, Jr.